

there sentence accordinge to y^e statute of 5 E[dward] 6, cap 4,' which is, if any one shall by words quarrel or brawl in a church or churchyard and the offence is proved by two witnesses, the offender, if a layman, shall be suspended by the Ordinary *ab ingressu ecclesiae*, and if a clerk, from his office. If any one smite or lay violent hands on another in church or churchyard, *ipso facto* he shall be deemed excommunicate. If any strike another with a weapon, or draw a weapon with intent to strike another, and be convicted of this by the verdict of 12, on his own confession, or by two lawful witnesses, before the Justices of Assize, the Justices of *oyer et terminer*, or the Justices of the Peace at their Sessions, he shall be sentenced by the Justices before whom he is so convicted to have one of his ears cut off, and if he have no ears, he shall be burned on the cheek with the letter 'F' for 'fraymaker' or 'fighter,' and he shall be *ipso facto* excommunicate.

Herberte
and Caesar
differ
5 Edw. VI.,
cap. 4

'But the Judges differed from them as before, firste for that the bill was not framed vpon this statute nor any other speciall statute, but generallye, & allso this statute lymitethe pertycularlye the Judges of th'offenders againste that lawe.

'Yet the Lo. Chauncellor was of opinion that this Cowrte mighte giue that sentence, or any other Corporall punishem^{te} but lyfe: yet the Lo. Coke sayd that *maxima pecuniaria pena maior est quam minima corporalis*. & in that respecte the sentence was the greater, for Churchyardes are consecrated to pious vses, the places where the temples of the holye ghoste lye, the bodyes of the sayntes, men are to be in peace to doe there deuotion; a growing euell, men gyuen to prophanenes, the nexte waye to Atheisme, whereas heretofore they were sanctuaries & places of refuge; & by the aunciente lawe noe preiste either goinge or comminge from the Church Can be arrested in his person: & so they all wysshed that there mighte Care be had to punishe those that vsed either prophanation one the Sabaothe daye, or in Church or churchyard, and that the people mighte resorte & Contynewe at y^e Church wth deuotion all the time of diuine seruice.'

Churchyards